



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

July 30, 2011

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 14984
(SECOND REVISION)

EXPIRATION DATE: July 31, 2012

1. GRANTEE: Air Products and Chemicals, Inc.
Allentown, PA
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the transportation in commerce of certain non-DOT specification foreign cylinders containing Dichlorosilane by motor vehicle and cargo vessel. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171.23(a)(1) and (3) in that DOT-specification cylinders are required, except as provided herein.
5. BASIS: This emergency special permit is based on the application of Air Products and Chemicals, Inc. dated December 30, 2010 submitted in accordance with § 107.109.

July 30, 2011

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Dichlorosilane	2.3	UN2189	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are non-DOT specification stainless steel welded cylinders, most similar to the DOT-4BW, which are designed, manufactured, and tested in conformance with the Japanese Gas Law. The cylinders must be in conformance with the Koatsu Showa Cylinders Co., Ltd. drawing EW.4.60101, specifications and design criteria on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

b. REQUALIFICATION - Each cylinder must be requalified once every five years in accordance with the requirements of § 180.209 as applicable to the DOT 4BW cylinder.

c. OPERATIONAL CONTROLS -

(1) Cylinders must be shipped in a strong outside packaging complying with the provisions of 173.40(d).

(2) The shipping paper must identify the cylinders with the special permit number "DOT-SP 14984".

(3) Cylinders must be transported by dedicated truck from Santa Clara, CA to the Samsung Austin Semiconductor facility in Austin, TX.

(4) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the cylinders are not fitted with pressure relief devices and provide appropriate guidance for exposure to fire.

(5) This special permit is limited to a period of time not to exceed 12 months after the date of renewal or 10 shipments, whichever comes first. In either case, the total

July 30, 2011

number of cylinders that are shipped must not exceed 200. Air Products must notify the Office of Hazardous Materials Special Permits & Approvals (OHMSPA) when either of these conditions has been reached.

(6) Cylinders authorized under this special permit may be transported by cargo vessel only when loaded into closed steel freight containers.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The outside of each package must be plainly and durably marked "DOT-SP 14984".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

July 30, 2011

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

July 30, 2011

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MAB